

Buddhesh Patel v. State of U.P. and Another

Allahabad High Court · Division Bench · 22 June 2018 · 2018 SCC OnLine All 855 · Writ - C No. 21993 of 2018 · **Writ petition disposed of with liberty to file an objection under Clause 6.5 before the Executive Engineer within a week (to be decided within three weeks), no coercive action meanwhile**

HEADNOTE

A consumer disputing a recovery raised on a direct-connection/theft finding (including the compounding fee, 'Shaman Shulka') must raise his objection before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, rather than have the writ court decide the disputed facts. On inspection a direct connection from the pole was found to run the petitioner's mill; the fine had been reduced from Rs. 2,43,308 to Rs. 36,217 plus Rs. 40,000 compounding fee. As the petitioner was disputing the recovery, the Court relegated him to a Clause 6.5 objection before the Executive Engineer, to be decided within three weeks, and directed that no coercive action be taken until then.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Dispute over a direct-connection/theft recovery pursued by objection before the Executive Engineer under Clause 6.5

QUESTION

Where a consumer disputes a recovery raised on a direct-connection finding and the compounding fee, should the writ court adjudicate the disputed facts or relegate the consumer to Clause 6.5?

HOLDING

Relegate to Clause 6.5. As the petitioner was disputing the recovery proceeding, he is at liberty to move an objection before the Executive Engineer under Clause 6.5; if filed within a week the authority should pass an appropriate order within a further three weeks, and no coercive action is to be taken meanwhile. ¶ 3-6

LIMITING FACTS

Direct connection from the pole found on inspection to run the mill; fine reduced from Rs. 2,43,308 to Rs. 36,217 plus Rs. 40,000 compounding fee; disputed factual matrix.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A disputed recovery (here on a direct-connection/theft finding) is to be pursued by objection before the Executive Engineer under Clause 6.5, with interim protection against coercive recovery. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DIRECT CONNECTION / THEFT AND THE RESULTING RECOVERY AND COMPOUNDING FEE WERE JUSTIFIED

Disputed facts left to the Executive Engineer to decide on a Clause 6.5 objection. ¶ 5-6